

Pinapala Rupa Lakshmi vs Pinapala Anil Kumar on 23 March, 2020

Author: M.Venkata Ramana

Bench: M.Venkata Ramana

HON'BLE SRI JUSTICE M.VENKATA RAMANA

SECOND APPEAL No. 96 of 2019

JUDGMENT:

This second appeal is directed against the decree and order in A.S.No. 95 of 2018 dated 22.11.2018 of the Court of learned XII Additional District Judge, Krishna at Vijayawada. It was inturn preferred against the decree and order in SOP No. 30 of 2012 dated 17.02.2018 of the Court of learned III Additional Senior Civil Judge, Vijayawada.

2. The appellants filed SOP No.30 of 2012 under Section 372 of the Indian Succession Act for issuance of succession certificate in their favour authorizing them to receive the terminal benefits upon the death of Sri Pinapala Rambabu from the 2nd respondent Municipal Corporation and against the respondents 1 and 3. Their request was allowed by the court of the learned III Additional Senior Civil Judge, Vijayawada directing issuance of succession certificate in their favour and against the respondents. The appeal preferred against it stated above, was allowed in part while directing issuance of succession certificate not only in favour of the appellants but also in favour of the 1st respondent directing to receive the terminal benefits from the 2nd respondent Municipal Corporation.

3. Sri Pinapala Rambabu was electrician Gr-II in Vijayawada Municipal Corporation. He died at Gudivada on 28.01.2012.

4. The contention of the appellants is that they have been the legal heirs and successors to the estate of Pinapala Rambabu, 1st appellant being his wife and appellants 2 and 3 being daughters, who were born out of legal wedlock between the 1st appellant and Sri Pinapala Rambabu. Their contention further is that when they requested the 2nd respondent for the terminal benefits on the death of Sri Pinapala Rambabu, they were MVR,J directed to obtain a succession certificate from a competent Civil Court and hence they filed a petition under Section 372 of the Indian Succession Act. They also contended that since the 3rd respondent did not cooperate with them being son of Sri Pinapala Rambabu, he was made one of the respondents.

5. The 2nd respondent Municipal Corporation stated that the 1st respondent claimed himself being son of Sri Rambabu by his first wife and thus entitled for the terminal benefits upon death of Sri Rambabu. It further contended that the 1st appellant approached their office, as legally wedded wife of Sri Pinapala Rambabu, for the death benefits and requested to appoint the 3rd appellant on

compassionate grounds in the place of Sri Pinapala Rambabu. In those circumstances, it required the parties to obtain a certificate from a competent Civil Court.

6. The 3rd respondent is the son of the 2nd respondent. Both of them asserted their claim to the benefits payable on the death of Sri Rambabu opposing the claim of the appellants, while contesting that the 1st appellant was not the legally wedded wife of Sri Rambabu. They also contended that the 1st respondent was born to the 3rd respondent by Sri Rambabu.

7. Considering the evidence let in by the appellants through P.W.1 (1st appellant), P.W.2 and P.W.3 as well as Ex.A1 to Ex.A17 exhibited on their behalf and also the evidence of the 1st respondent as R.W.1, the trial Court held that the appellants were entitled for succession certificate as sought while observing that the 3rd respondent was not established as the wife of Sri Rambabu while also rejecting the parentage claimed by the 1st respondent to Sri Rambabu.

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8. In the appeal, the learned appellate Judge while upholding the findings of the trial Court that the appellants being the wife and daughters of Sri Rambabu, held that the 1st respondent is established being the son of Sri Rambabu by the material on record and thus partly reversed the findings of the trial Court, modifying its order and decree as referred to above.

9. The learned counsel for the appellants contended that the learned trial Judge rightly came to the conclusion in directing issuance of succession certificate and that a different stand was taken in the appeal by the 1st respondent as the son of Sri Rambabu born to the 1st respondent than in the trial Court. The learned counsel further contended that question of considering the 1st respondent as a legitimate child of Sri Rambabu in view of Section 16 of Hindu Succession Act did not arise and law is clear that a child born out of live in relationship cannot be entitled for such benefits. Reference is made in this context that the 3rd respondent was a resident of Nandigama, where she was living with her husband and while Sri Pinapala Rambabu was a resident of Vijayawada, while further pointing out that the 3rd respondent is the wife of maternal uncle of Sri Pinapala Rambabu. Reference is also made to Section 112 of the Evidence Act relating to presumption as to marriage contending that it is not applicable to the present case.

10. Contentions are also advanced for the appellants that the relationship between Sri Pinapala Rambabu and the 1st respondent is of prohibited degree and by no stretch of imagination, it can be construed that a child born about four years prior to the marriage of Sri Rambabu and appellant could be deemed the legitimate child of Sri Rambabu. Thus contending, it is requested to set aside the order and decree of the MVR,J appellate Court, while requesting to restore the order and decree of the trial Court.

11. On behalf of the 1st respondent, repelling the contentions of appellants asserting his relationship and that of Sri Pinapala Rambabu being legitimate, entitled for the benefits payable upon the death of Sri Rambabu, it is requested not to disturb the findings of the appellate Court as well as order and decree so passed.

12. On the material, on 01.03.2019, this Second Appeal was admitted and the following substantial questions of law were formulated for determination in this second appeal.

(i) Whether the first appeal viz., A.S.No.95/2018 is maintainable on the ground entirely different from the ground taken by R2 and R3 in the trial Court (S.O.P.No. 30 of 2012);

(ii) Whether the findings of the first appellate Court ignoring the oral and documentary evidence in favour of the petitioners and giving a finding that respondent No.3 (1st respondent herein) is entitled to a share in the death benefits of late Rambabu and ordering to issue Succession Certificate to that effect is vitiated by perverse reasoning?

13. Essentially the questions to consider in this matter are relating to entitlement of the appellants 1 to 3 for succession certificate being the legal heirs of late Sri Pinapala Rambabu and if respondents 1 and 3 are entitled for similar facility, having right and interest to the estate of late Sri Pinapala Rambabu including death benefits.

14. Therefore, the substantial question No.2 is considered in preference to the first question, now, as it covers the gamut of consideration and determination in this matter.

MVR,J Substantial question No.(ii):-

15. In a petition under Section 372 of Indian Succession Act for issuance of Succession Certificate, a limited jurisdiction vests in the Court to determine the question whether the applicants are entitled for succession certificate, in the given facts and circumstances. Thus the Court remains as of a limited jurisdiction, where it is difficult to subscribe to the view that the serious questions of entitlement to a right and interest relating to a security or debt as explained in Section 370(2) of the Indian Succession Act can be gone into. The purpose and object in issuing a succession certificate in terms of Part-X of the Indian Succession Act should be borne in mind.

16. Section 381 of the Indian Succession Act speaks of effect of certificate issued under Part X. For benefit, it is extracted hereunder:-

"381. Effect of certificate:- Subject to the provisions of this Part, the certificate of the District Judge shall, with respect to the debts and securities specified therein, be conclusive as against the persons owing such debts or liable on such securities, and shall, notwithstanding any contravention of section 370, or other defect, afford full indemnity to all such persons as regards all payments made, or dealings had, in good faith in respect of such debts or securities to or with the person to whom the certificate was granted."

17. Section 383 of this Act provides for revocation of certificate so granted specifying the circumstances under which it can be sought. Section 376 speaks of extension of the Succession

certificate.

18. It is also desirable to consider effect of Section 387 of the Indian Succession Act relating to ambit and scope of decisions thereunder and liability of holder of certificate. Section 387 of the Indian Succession Act reads as under:

MVR,J "387. Effect of decisions under this Act, and liability of holder of certificate thereunder:- No decision under this Part upon any question of right between any parties shall be held to bar the trial of the same question in any suit or in any other proceeding between the same parties, and nothing in this Part shall be construed to affect the liability of any person who may receive the whole or any part of any debt or security, or any interest or dividend on any security, to account therefor to the person lawfully entitled thereto."

19. Having regard to the scope and ambit of these provisions, the evidence and material on record in this respect need consideration.

20. The 1st appellant claims being legally wedded wife of Sri late Pinapala Rambabu and the appellants 2 and 3 are claimed to be their children born out of a legal wedlock. There is evidence of the 1st appellant as P.W.1 in this respect. Reliance is placed on behalf of the appellants on Ex.A11- the Wedding Card of the 1st appellant and Sri Rambabu. It was celebrated on 13.11.1991. Ex.A12-photographs and negatives, produced in the course of enquiry support the factum of marriage of P.W.1 and Sri Pinapala Rambabu. Both the Courts considered this fact and consistent findings were recorded in this respect. Thus, they are concurrent findings. Unless there is material on record specifically pointed out by the respondents, these concurrent findings cannot be interfered with nor can be disturbed at this stage.

21. On the other hand, material makes out that the relationship of the appellants and Sri Pinapala Rambabu was neither denied in the pleadings set up in their respective counters nor in the course of enquiry by the respondents 1 and 3.

22. On the other hand, there is an entry in Ex.A16-Service Register, making out the members of the family declared by Sri Rambabu during his lifetime. It included the appellants specifying their relationship. It also included mother of Sri Pinapala Rambabu and the 1st respondent MVR,J describing him as son. Further Ex.A10, a copy of household card (ration card), issued by the Revenue authorities, suggested similar situation reflecting the relationship among the appellants, Sri Rambabu and the 1st respondent. Apart from it there are admissions of the 1st appellant as P.W.1 in her deposition that the 1st respondent was the son of Sri Rambabu, who had also performed rituals and ceremonies on his death. Though he was born four years prior to the marriage of the 1st appellant and Sri Rambabu, it appears that he was treated and considered as his son. It was clarified further by the 1st appellant as P.W.1 during enquiry stating that the 1st respondent is the only son to Sri Rambabu.

23. Legitimacy of the relationship of the 1st appellant and Sri Rambabu thus basing on the material on record is established. Therefore, the appellants 2 and 3 are their legitimate children. In fact, one of the suggestions on behalf of the 1st respondent to the appellant as P.W.1 in the course of enquiry was that the appellants 2 and 3 alone are entitled for death benefits along with the respondents 1 and 3, which she denied. This suggestion is supportive of the stand of the appellants and thus, a collateral factor to consider in this respect.

24. There are circumstances brought out during enquiry that the relationship between the 1st appellant and Sri Rambabu was strained during his lifetime and that she went to the extent of filing a criminal case for an offence under Section 498-A I.P.C. The material on record is to the effect that the 1st appellant did not attend on him, when he was ailing or when he was hospitalized at Vijayawada and who ultimately died at Gudivada as is reflected from Ex.A1-death certificate. Nonetheless, the strained relationship in between them, is not a factor to affect their legal MVR,J relationship nor is there any material to show that their relationship was legally terminated at any stage during the lifetime of Sri Rambabu.

25. Claim of the 3rd respondent, as rightly observed by the trial Court was not substantiated during enquiry, since she did not enter the witness box nor was there any proof laid to prove that she was married to Sri Rambabu. On the other hand, Ex.A13-Election Identity Card, described her as the wife of Sri Sundar Rao and that she was a resident of Nandigama. Sri Sundar Rao is stated to be the maternal uncle of Sri Rambabu. However, such relationship has not been pointed out with certainty by evidence on record nor the parentage in respect of the 1st respondent, was established in the course of enquiry tracing to Sri Sundar Rao.

26. However, the evidence on record did not indicate that the 1st respondent was considered and treated as son born to him and the 3rd respondent. From the material on record, it cannot be concluded that the 1st respondent is the illegitimate son of Sri Rambabu nor there is any material to hold that either Sri Sundar Rao or Rambabu is his biological father.

27. In these circumstances, larger questions canvassed on behalf of the appellants basing on Section 112 of the Evidence Act as to presumption of marriage and validity of the relationship of Sri Rambabu vis-à-vis the respondents 1 and 3 need not be gone into, particularly when questions required to be considered in this case are limited in scope and purpose.

28. Therefore, basing on the material on record, when the relationship of the appellants and Sri Rambabu is thus established, they MVR,J are entitled for succession certificate as requested. The effect of Section 387 shall be borne into mind with reference to such grant of succession certificate. Production of such succession certificate offers an indemnity to the 2nd respondent Municipal Corporation to protect itself against any claims of anyone to the death or terminal benefits, on the death of Sri Rambabu.

29. In this backdrop, the learned appellate Judge could not have decided the nature of relationship of the 1st respondent and Sri Rambabu and to direct that a succession certificate should also be issued to him along with the appellants. It was never the claim of the parties either in the trial Court

or in the appellate Court. Therefore, a new case cannot be made out at the appellate stage for the benefit of the 3rd respondent. However, in as much as there are serious questions left open for consideration as to relationship between Sri Rambabu and the respondents 1 and 3, it is desirable for the parties to get their rights established in a properly constituted civil suit than in a proceedings of this limited scope and nature. Therefore, the decree and order of the trial Court directing to issue succession certificate to the appellants have to be confirmed.

30. Thus, this question is answered.

Substantial question No.(i):-

31. In view of the reasons assigned on question no.1, particularly in respect of the approach of the Appellate Court, which is way different from the case set up by the parties in the course of enquiry in the trial Court, the conclusions so recorded enabling the 1st respondent to get succession certificate along with the appellants is not proper.

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32. Thus, this question is answered.

33. In view of the findings recorded on substantial questions 1 and 2 above, the Second Appeal has to be allowed modifying the order of the 1st appellate Court.

34. In the result, the second appeal is allowed modifying the decree and order of the first appellate Court. The appellants are entitled for issuance of succession certificate. The respondents 1 to 3, if so advised can lay a suit to establish their right and interest to the estate of late Sri Pinapala Rambabu including in respect of death benefits. Any findings recorded in this order in this second appeal shall not affect the claims of the parties to the suit, if to be instituted by the respondents 1 and 3. The second respondent Municipal Corporation upon production of the succession certificate by the appellants shall release all the terminal benefits payable on the death of late Sri Pinapala Rambabu to the appellants 1 to 3 and such action of the second respondent stands indemnified and protected by the succession certificate produced by the appellants. There shall be no order as to costs.

As sequel thereto, all miscellaneous petitions, if any, shall stand closed. Interim Orders, if any, shall stand vacated.

JUSTICE M.VENKATA RAMANA Dt:23.03.2020 RR MVR,J
HON'BLE SRI JUSTICE M.VENKATA RAMANA Dt:23.03.2020 RR